
Occupiers' Liability Acts (OLA) 1957 and 1984

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Signposts

- The scope of the OLAs
- OLA 1957
- OLA Cases

- Please have the full text of the statute available if possible.

* Remember to check in.

Occupiers' Liability

- Liability of occupiers for people injured or property where loss/injury results from danger related to state of occupier's premises
- Such liability developed under the common law (Now primarily governed by statute)
 - Partial codification of negligence liability (duty and breach)
- Occupiers Liability Act 1957 – liability in respect of lawful **visitors**
- Occupiers Liability Act 1984 – liability in respect of **trespassers/ non-visitors**

Pre-requisites for the OLAs

- 1) D is an occupier
- 2) Incident occurred at relevant premises under the OLAs
- 3) Danger is an occupancy (static) danger, as opposed to activity

OLA Codification Summary

- Duty:
 - Visitors: s 2(1) OLA 1957
 - Trespassers: s 1(3) OLA 1984
- Breach:
 - Visitors: establish standard of care s2(3)(a); prove breach; consider any mitigations, specialist visitors s2(3)(b), warnings s2(4)(a); and/or independent contractors s2(b)(b)
 - Trespassers: standard of care, breach, *but only warnings* s1(5)
- Causation: common law
- Remoteness: common law

OLA 1957

Duty of care owed by OCCUPIERS to lawful visitors

Who is an Occupier under the Act?

- S 1 (2) Occupier is someone who would be treated as such under common law
- *Wheat v E Lacon & Co Ltd* [1966]
- Degree of control exerted over premises

Premises

Premises; s1(3)(a) the obligations of a person occupying or having control over any fixed or moveable structure, including any vessel, vehicle or aircraft

Occupiers

Private Occupiers:

In non-business occupier cases, if the occupier has taken reasonable steps to bring the notice to the attention of a visitor, it will be effective.

Private occupiers can determine the conditions upon which people enter the land.

Ashdown v Williams [1957] 1 QB 409: business occupiers

Business Occupiers (FYI only!)

The definition of business liability is contained in **UCTA, s. 1(3)(b)**:

“liability arising from occupation of premises used for business purposes of occupier”

If there is business occupier, the following provisions apply:

- **UCTA, s. 2(1)** prohibition on notices excluding liability for death and personal injury by negligence applies;
- **UCTA, s. 2(2)**: reasonableness of excluding liability, by use of a notice, for other forms of loss caused by negligence.
- **NB UCTA, s.1(1)(c)**: includes liability under OLA 1957 in its definition of negligence. It therefore covers the ability of an occupier to exclude liability that would otherwise arise under that Act.

But remember the important difference between a *warning of danger* and a *notice excluding liability*: **s. 2(4)(a)** only applies to warnings.

OLA 1957

Duty owed?

- S 2 (1) Common duty of care →
- S 2 (2) “Common duty of care is a duty to take such care as in all the circumstances of the case is reasonable to see that the visitor will be reasonably safe in using the premises for the purposes for which he is invited or permitted by the occupier to be there.”
- Nature of the duty owed depends upon the:
 - Nature of the danger
 - Length of time the danger was in existence
 - Steps necessary to remove the danger
 - Likelihood of the injury being caused

Lawful Entrants: Visitors (OLA 1957)

Who is a lawful entrant?

- Anyone with permission to be there (see guidance s 1 (2))
 - Visitor or contractual entrant
- Can either be express or implied and those with a right to be there as conferred by law (s 2 (6)).
- Purpose of visit important:
‘When you invite a person into your house to use the staircase, you do not invite him to slide down the banisters, you invite him to use the staircase in the ordinary way in which it is used.’
- Scrutton LJ, *The ‘Carlgarth’* [1927]
- Occupier will only owe the visitor a duty in respect of the purpose for which they are visiting
- *Tomlinson v Congleton* [2003]

Lawful Entrants: Visitors (OLA 1957)

Express or implied (on the facts)

- Three categories:
 - Invitees (*eg*, guest at a party)
 - Licensees at common law (*eg*, postal worker)
 - Right conferred by law (*eg*, police officer stopping breach of peace)

Glasgow Corp v Taylor [1922] 1 AC 44

Jolley v Sutton LBC [2000] 1 WLR 1082

Jolley v Sutton (small advice break...)

council flats at Hayling Court at North Cheam in Surrey; 'grassed area where children played'



AKA WHY LAWTEACHER.NET ET AL. ARE BAD.

- council flats at Hayling Court at North Cheam in Surrey; 'grassed area where children played'

- 'beach'

- why do we care?



Special classes of visitor

■ Children

- Special precautions to be taken where children are concerned; s 2 (3) (a)
- *Jolley v Sutton LBC* [2000]
- *Glasgow Corporation v Taylor* [1922]
- *Bourne Leisure v Marsden* [2009]
- *Phipps v Rochester Corporation* [1955]

■ Persons exercising a 'calling' are also recognised as a special class of visitor

- They will be expected to 'appreciate and guard against any special risks ordinarily incident to it;' – s 2 (3) (b)
 - *Roles v Nathan* [1963]
 - *Eden v West* [2002] EWCA Civ 991 (but must be given appropriate information)

Independent contractors

The defendant occupier may have discharged his duty even though injury befalls a visitor if the injury can be attributed to the fault of an independent contractor who has worked on the occupier's premises.

Section 2(4)(b) imposes three requirements for this to occur:

(4) In determining whether the occupier of premises has discharged the common duty of care to a visitor, regard is to be had to all the circumstances, so that (for example)—

- (a) where damage is caused to a visitor by a danger of which he had been warned by the occupier, the warning is not to be treated without more as absolving the occupier from liability, unless in all the circumstances it was enough to enable the visitor to be reasonably safe; and
- (b) where damage is caused to a visitor by a danger due to the faulty execution of any work of construction, maintenance or repair by an independent contractor employed by the occupier, the occupier is not to be treated without more as answerable for the danger if in all the circumstances he **had acted reasonably in entrusting the work to an independent contractor** and had taken such steps (if any) as he reasonably ought in order to satisfy himself that the contractor was **competent** and that the **work had been properly done**.

Defences: *Volenti* & *Cont. Neg.*

- *Volenti* [consent] - “The common duty of care does not impose on an occupier any obligation to a visitor in respect of risks willingly accepted as his by the visitor...” – s 2 (5) OLA 1957
 - *Darby v National Trust* [2001] PIQR P27
- Contributory Negligence – reduces damages

Defences: Warnings

- OLA 1957, s 2(4)(a) – may be a defence but depends on circumstances...
 - “Where damage is caused to a visitor by a danger of which he had been warned by the occupier, the warning is not to be treated without more as absolving the occupier from liability, unless in all the circumstances it was enough to enable the visitor to be reasonably safe...”
- Warnings
 - *Staples v West Dorset District Council* [1995] PIQR 439
 - With obvious danger, no need to warn
 - *Darby v National Trust* [2001] EWCA 189
 - Similarly obvious risks of open nature

Next class...

- OLA 1957 Review
- OLA 1984
- Please review both OLAs in full